

Polemical Theology

Controversy XXVIII: On the Election of the Supreme Pontiff

First Part: The Doctrines of the Catholics (§§ V-XVI)

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V. Formerly the question was rather grave, whether it is of faith that the supreme Pontiff existing for the time being is the true Pontiff. Theologians of great authority stood on both sides, as may be seen in Diana, part 11, Tract 2, on the infallibility of pontifical decrees, Resolution 6, where for the negative side he adduces first of all Master Báñez on the 2-2 of St. Thomas, q. 1, art. 10, dub. 2, ad 2; Cajetan on the cited q. 1, art. 3, ad 4; and Castro, Against the Heresies, Book 1, ch. 9. The same is held by Cano, Book 6 of On the Theological Places, ch. 8, q. 1, ad 10; Malderus, Disp. 5 on the Supreme Pontiff, in the solution to the 4th; and not a few others, to whom Cardinal Bellarmine may be added, On Councils, Book 2, ch. 9, where, replying to the last objection, he says that it is held only by natural evidence and human faith that the Councils of Nicaea and Ephesus were legitimately convened, and that this suffices for the things defined by them to be held as of faith. For it is evident that it is the same question (so far as concerns our present purpose) whether it is of faith that this Council is or was legitimate, and whether it is of faith that this individual Pontiff is the true Pope. In the affirmative opinion today the Doctors of almost all the Academies conspire, and with them let our position stand.

VI. *Third Doctrine.* It is of faith that this individual Pontiff existing for the time being — namely, now Innocent XI, whom the whole Church acknowledges and receives as legitimately elected — is the true Pontiff and the Head of the whole Church. So by name, from our Society, Fr. Alphonsus Salmerón, Valencia, Suárez, Hurtado de Mendoza, Tanner, Amicus, Oviedo, Arriaga, Castro Palao (Tract 4, Disp. 1, num. 5, § 2), Martín de Esparza (On Faith, Quest. 29), Cardinal de Lugo (Disp. 1 on Faith, Sect. 13), Cardinal Pallavicino (ibid., num. 140), and — lest I be too long in recounting — all the rest of our Fathers today. And Clement VIII gave great strength to this doctrine, who, as Diana testifies, threw into prison several Doctors asserting the opposite, and ordered them to come to Rome to render an account of their opinion. It is proved, first: It is of faith that everyone canonically elected who enters upon the Apostolic Chair is the true Pontiff and Pastor of the universal Church. But this individual Pontiff, Innocent XI, who has been accepted by the common consent of the Church, has been canonically elected as Head of the Church. Therefore, etc. The Major is certain in the same way as this: it is of faith that he is a saint who has been legitimately canonized. Proof of the Minor: Whatever the

whole Church firmly believes in matters pertaining to Religion is true, since she is the *pillar and ground of truth* (1 Tim. 3:15) and cannot err by acknowledging as true Pontiff one who is not such — as he really is not who was not canonically elected. But after the inauguration and promulgation of a Pope, and his universal acceptance and approbation, the Church firmly believes that he was legitimately elected. Therefore it is true, etc.

VII. It is proved, secondly: Pope Martin V decreed in the Council of Constance that to heretics wishing to be reconciled to the Church it should first be proposed *that they believe that the canonically elected Pope who for the time being shall be (his name being expressly stated) is the Successor of Peter, and has supreme power in the Church.*

Therefore the Pontiff supposed this to be of faith, since from a heretic nothing is exacted except assent to things pertaining to the faith — and that an absolute assent, not one virtually conditioned (namely, “if this Pontiff has been canonically elected”); for such an assent would be futile.

VIII. It is proved, thirdly: Because we must believe by faith all the things defined in the Council of Trent, for example, and in the other legitimate General Councils. Therefore we must believe by faith that it is a legitimate Council; just as, because we must believe by faith all the things contained in the Gospel of St. Mark, we must also believe by faith that it is a true and canonical Gospel; for if we could prudently doubt or fear concerning the legitimacy of a Council, we could also doubt or fear concerning its definitions. Since therefore the validity of a Council depends on the consent and approbation of a true Pope, without which approbation a Council does not have the authority of a legitimate Council, it follows that by the same faith the true Pontiff must be believed, from whom the legitimate Council has its authority and validity.

IX. The Adversaries say that Trent would have been infallible even if it had not had a true Pontiff, but only one esteemed such by the Church. Let this pass; yet it would not have been legitimate in point of fact, since these are different things, and more is required for the latter than for the former. I said “let it pass.” For the Adversaries must prove from Holy Scripture that this infallibility is promised to a Pseudo-pope. If, then, they should bring forward those testimonies by which we are commanded to hear the Church, and by which it is promised to the Church that she shall never err, as being the pillar and ground of truth, and should wish to infer from them that it pertains to divine Providence that God should so govern even a Pseudo-pope that he not lead the whole Church into error — we shall say with better right, and shall gather from those same passages, that it pertains to the providence of God not to permit that the whole Church err concerning the Pope by receiving as legitimate one who through a hidden impediment is incapable. For when it is said in Matthew 16:18, *upon this Rock I will build my Church*, all Catholics confess that the promise was made to Peter and his Successors — which is not without violence extended by the Adversaries to a pseudo-Successor: both because a putative Successor is not absolutely and simply a Successor; and because, by

the very fact that Christ promised that His Church would be founded upon the Successors of Peter, He also promised that He would always provide Successors; but who would say that a putative Successor is a work of divine providence?

X. It is proved, finally, fourthly: The Church, above all as joined to her Head, cannot err. But the universal Church together with her Head holds that Innocent XI is the true Pontiff. Therefore it must be held by divine faith — or else it must be said that the Church together with her Head can err by recognizing as true Pope one who really is not such. Báñez distinguishes between practical and speculative error; he calls it the former when one errs while prudence is observed, the latter when someone judges about a thing otherwise than it is in itself; and this latter he concedes can happen in the present case — just as, he says, the Church long erred speculatively in judging Eunuchs capable of marriage, until through Sixtus V she was taught the truth. But this response is easily refuted; because the universal Church, in those things which she proposes concerning the inanimate rule of faith, which is Sacred Scripture, cannot err not only practically but also speculatively. Therefore she likewise cannot err in receiving the animate rule of faith, which is the supreme Pontiff. The instance about the Eunuchs proves nothing; for the Church did not judge the marriages of Eunuchs to be true and approve them as such, but only tolerated and permitted them, until she should apply herself to rendering judgment upon them.

XI. Our foregoing Doctrine is confirmed by the solution of those arguments which are brought by the Adversaries for the opposite opinion. *The first.* It does not appear whence it could be established that this individual Pontiff, e.g., Innocent XI, is the true and legitimate Pope. For it is neither included in the general revelation, nor can it be specifically shown where and when this was revealed. Response: according to the almost common opinion of the Theologians, that this individual Pontiff is the legitimate Pontiff was revealed both in this universal proposition: *Everyone legitimately elected and promoted to the Chair of Peter is the legitimate Pope*; and in that other, that the Church is the pillar and ground of truth, and cannot err in matters pertaining to Religion. For in this general rule, says Cardinal de Lugo (loc. cit., num. 330), it is contained that she cannot err in recognizing this individual as the true Head and visible Rule of the Catholic faith — wherein she would err more gravely and more perilously than concerning some particular object of faith which was not the foundation of the others, as the visible Rule is the foundation of the Faith and of the Church, which for that reason is said to be founded upon Peter and his Successor — so that, accordingly, from the fact that the Church acknowledges and accepts this individual Pontiff as true Pontiff, it becomes certainly and sufficiently known that the same is contained in that former proposition, and has been legitimately elected and promoted to the Chair of Peter.

Arriaga (Disp. 7 cit., num. 52) by no means rejects this universal response, yet thinks moreover that this individual Pope's being the legitimate Pope has also been specially and newly revealed to the Church. For GOD, he says, reveals something in two ways: either properly, by speaking outwardly or inwardly with him to whom He reveals — in which manner it is not necessary that there be given now in the Church a universal revelation for believing; or in another way, in the exercised act, by not permitting that he who proposes a matter should in any way stray, but so directing his intellect, disposing it by His providence, that he touch the truth. In this latter way, then, the cited Author holds that God reveals to His Church that this individual Pontiff is the legitimate Pontiff; for He does not permit that anyone be proposed to the whole Church undoubtingly as true Pope who really is not such; and that He does not permit this, we have from the fact that He promised that He would be with His Church — a promise He must fulfill most of all in this point, on which the government of the whole Church and the declaration of the things to be believed depend.

XII. Moreover, the same valid election becomes evident to us from this, that the Cardinals and the Bishops and the Clergy and almost the whole Body of the Church accept that election without contradiction. And as for what is commonly said, that, setting aside the Pope himself, *GOD reveals nothing to His Church*, a distinction must be made: when the Pope has already been received as true and legitimate Pontiff, and a matter is to be decided by him, we grant that GOD then exercises that His infallible assistance toward him alone; but in order that the Pope himself be received as such, He must effect this through the Church; wherefore, directing her lest she err in such an election, He reveals to us, in that other way we have mentioned, who is Pope and Head of the Church. Whence it is further evident when it begins to be of faith that this individual Pontiff, elected for the time being, is the true and legitimate Pontiff: namely, when the whole or nearly the whole multitude is seen to assent uniformly to the legitimacy of the election, or so many and such have already assented that it cannot prudently be doubted that the rest will come to the same opinion, considering the circumstances which become known close at hand; for no more suitable proposing of this article either exists in fact, or can easily be conceived to exist, acting conformably to the human condition and in a human manner, to which divine providence accommodates itself, as Fr. Esparza well observes, quest. 29 cit.

XIII. *A second argument.* To believe that this man is the true Pontiff supposes that he has been duly baptized, since no one who is not baptized is capable of the Papacy. But this we cannot know concerning the aforesaid Pontiff, since it is not established for us whether the one baptizing had the intention of baptizing. Response: by the very fact that it is revealed that this man, e.g., Innocent XI, is the true Pontiff, it is also revealed, at least implicitly, that he is baptized. For if Baptism is included as an essential part in the truth of the Papacy, as many hold, then Baptism itself will also be of faith, because it will be immediately revealed, although confusedly, as a part in the whole. But if, as we judge

more probable, baptism is not included formally in the truth of the Pontificate, but is essentially prerrequired as something extrinsic and connoted, in order that GOD confer the power upon this man, then it will be revealed more implicitly, because it follows from two propositions of faith, namely: that every true Pontiff is baptized; and that this individual man is the true Pontiff. Since therefore it is established from Scholastic Theology that the object of a conclusion which is inferred from two revealed premises can also be believed immediately of faith, without discourse, from the things revealed — it must accordingly, as explained, be said in consequence that the baptism of this individual Pontiff accepted by the Church is of faith. And so, the Major being conceded, the Minor is distinguished: that we cannot know with certainty before the acceptance of the Church, we concede; after that acceptance, we deny; whence it only follows that — this individual Pontiff's being baptized, being the legitimate Pontiff, etc. — is not to be believed by us of faith absolutely before the acceptance of the Church; it is otherwise after that acceptance.

XIV. What we have said of Baptism, most Authors will have said also of Sacred Orders. But Arriaga affirms nothing about these. For, he says, the whole jurisdiction in which the Papacy properly consists is independent of Sacred Order. If then a true Pope can exist without orders for half a year, why not for a whole one? If you infer: Then, if he ordains and absolves Sacramentally, he will be able to err, which is to the great prejudice of the Church — the cited Author replies (num. 51) that as to this the prejudice would perhaps be no greater than if another Bishop or a simple Priest were to absolve and ordain; which may seem not altogether improbable. Nevertheless the former opinion is to be retained as the common one; since it assuredly matters more to the Church that the Pope cannot err in ordaining and absolving than a private Bishop or Priest.

XV. *A third argument.* He who would withdraw from the present supreme Pontiff would indeed be a schismatic, but not a Heretic. Therefore it is not of faith that he is the legitimately elected supreme Pontiff; since to withdraw from some dogma pertaining to the faith is heresy, and not schism only. Response: since heresy and schism differ in formal character, it is by no means necessary that every schismatic be a Heretic; for he who acknowledges the unity of the Church and the primacy of the Pontiff, yet out of malice refuses to be subject to him and, in this subjection, to communicate with the remaining members of the Church, is reckoned purely a schismatic; but if anyone were to withdraw with an error of the intellect, whereby he would not believe that he whom the Church has received and retains as supreme Pontiff is the true and legitimately elected supreme Pontiff, he would truly be a Heretic — supposing that the proposition of which we are treating pertains to the faith. Castro Palao may be consulted, Tract 6, Disp. 4, p. 5.

XVI. *The fourth and last argument.* By Ecclesiastical laws an election made with a hidden impediment — e.g., of Simony, of an insufficient number of votes, etc. — is voided. Therefore one so elected will be only an apparent Pontiff, even if afterwards he

is accepted by the whole Church; because, according to the rule of law, what is defective from the beginning does not become valid by the passage of time. And if it be said that it pertains to divine Providence not to permit that an election be made void by such an impediment, it follows that those impediments voiding an election, even when they are hidden, were introduced wrongly and in vain. Response: the aforesaid Laws neither have, nor can have, place, nor ought they to be understood, except of the first election, through which, made by the Cardinals, it does not at once become certain by faith that the one elected is the true Pontiff. If therefore that election be supposed void by reason of a hidden impediment, there succeeds another election, voidable by no positive law, which the Church makes by accepting that man as true Pontiff; and although this acceptance proceeds from the preceding error, it is nevertheless not conditioned, but absolute; for it is better that the Church should hold for true Pontiff someone who was invalidly elected, than that she should unknowingly lack a true Pontiff and venerate as such one who in reality is not. And therefore in the aforesaid case there resides in the universal Church the power of providing herself with a legitimate Head, supplying all defects of law, lest she remain headless; and that this power of electing resides in the Church is established by the arguments we have adduced for our present doctrine; and the Church is deemed to elect, as it were a second time, him whom she accepts. The other arguments which the heretics object against this same doctrine of ours we shall resolve more conveniently in the other part.

[...]

Second Part: The Errors of the Sectarious (§§ XXXIX-XLIII)

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XXXIX. *The second Error is:* That Innocent XI, the Pope existing for the time being, is not the true and legitimate Pontiff and Successor of Peter. So the same heretics, who strive to establish this chiefly by a twofold instance. The first they take from Formosus, who, held for the true and legitimate Pontiff, died in the year of Christ 896, on the 14th of December, after he had presided over the Church for six years, accepted by her: and yet Stephen VII (called the sixth) condemned this his Predecessor as an illegitimate Pontiff and reprobated his acts. The other is suggested by the twenty-third schism in the Church, at once the gravest and the longest of all, lasting namely thirty-six years, down to the Council of Constance. For after Gregory XI, the See having been transferred from Avignon back to Rome, died in the City, Urban VI was elected in his place by the Cardinals, two thirds of the votes conspiring upon him; whence his election was promulgated as legitimate, and accepted throughout the Christian World. But not many days afterward certain Cardinals protested against this election and, fleeing into France, elected Clement VII, to whom after 14 years was substituted Peter de Luna of Aragon, who with most obstinate spirit wished to be called Benedict XIII — a dignity of shadow.

Meanwhile Innocent VII and Gregory XII succeeded Urban VI, and the Council of Pisa, wishing to remedy this schism, created Alexander V; whence three Pontiffs sat at once: Gregory XII, Benedict XIII, and Alexander V, to whom shortly afterward John XXIII succeeded, Gregory being still alive. Therefore at that time the universal Church neither proposed the election of Urban, nor was she bound to believe it as legitimate, and the succession in the See of Peter was manifestly interrupted. Therefore the Pope existing for the time being, Innocent XI, is not the true and legitimate Pontiff and Successor of Peter. To these two instances Gerhard (book 1, fol. 283) adds this argument: *Of whomever it can reasonably be doubted whether he is in the Church, of him it can also reasonably be doubted whether he is the true and legitimate Pope. But of anyone whatever this can be doubted. Therefore, etc.* The reason of the Major is that the legitimate Pope is the Head of the Church; but he who is not in the Church, how can he be its Head? The reason of the Minor is that of him whose sanctity is not established, it cannot be known that he is in the Church — chapter *cum aliquis*, cause 24, q. 3: *when anyone departs from the truth, from the fear of GOD, from faith, from charity, he departs from the camp of the Church, even if by the voice of the Bishop he is by no means cast out.*

XL. To this error the aforesaid schism gave occasion; for when it had been removed, Pope Martin V, in the Bull recorded in the Council of Constance, made that decree which I mentioned above — namely, that from Heretics wishing to be reconciled to the Roman Church it should first of all be exacted *that they believe that the Pope who for the time being shall be, his name being expressly stated, is canonically elected, and the Successor of Peter, and holds supreme power in the Church of God.* Palao (Tract 4, Disp. 1, punct. 5, § 2, num. 11) observes that it is one thing to say: *it is not of faith that Innocent XI is the true Pontiff*, and another: *the same is not the true Pontiff*; for this latter proposition is temerarious, scandalous, and plainly heretical; the former he will not censure more gravely, on account of several celebrated Theologians who have defended it. We, although we hold that it is of faith that Innocent XI is the true Pontiff and Successor of Peter, nevertheless do not here contend against those Theologians by accusing them of heresy; because the revelation of this truth either has not been sufficiently proposed to them, or they do not pertinaciously resist it, being ready to believe it whenever they shall have understood it to be sufficiently proposed by the Church. And so we reject only the error of the Sectarians, who not only in general hold all the Roman Pontiffs for illegitimate, but also deny that this Pope existing for the time being, Innocent XI, is the true legitimate Pontiff and Successor of Peter, however much he has been Canonically elected and accepted by the Church. The instances brought forward in no way serve the Adversaries.

XLI. Response 1, *to the first instance, concerning Formosus and Stephen.* Stephen erred indeed, but in a question of fact, not of law, and by bad example, not by false doctrine. So Bellarmine (Tom. 1, Book 4, On the Pontiff, ch. 12) and commonly the other Catholic Doctors. The History, from Cardinal Baronius (Tom. 10, Ecclesiastical Annals, A.D.

897), stands thus: Stephen VII, a true Pope, out of grave hatred exhumed the corpse of his Predecessor Formosus, likewise a legitimate Pontiff, and, having clothed it in the Pontifical vestments, placed it on the Seat of the Roman Papacy, addressing that Pope thus: *When you were Bishop of Porto, why did you, in a spirit of ambition, occupy the Roman Universal See?* — with which words he presently ordered the same, stripped of the sacred vestments and with the three fingers with which he had been accustomed to bless cut off, to be hurled into the Tiber; and all whom he had ordained he cast down from their proper rank and ordained anew. Then, having gathered a Synod, he had this deed of his approved there; which approbation John IX afterward rescinded, committed to the flames, and utterly abolished. In this abominable affair there occurred no error in faith, says Baronius rightly (*loc. cit.*), but violent Tyranny in deed; because Stephen did not wish to define that Formosus had not been a legitimate Pontiff after he had been accepted by the Church, but, seething with anger, wished by this means to dishonor and defame the man whom he had pursued with grave hatred, and to have approvers of his crime as though of a just deed. For the rest, Liutprand writes (Book 1, ch. 8, in the same Baronius) that Formosus, when he had been found by Fishermen and carried back into the Church of St. Peter, was venerably saluted by the Sacred Images as he lay in his coffin; from which it may easily be conjectured of how great Authority, of how great religion and Sanctity a Pontiff Formosus was.

XLII. Response 2, *to the second instance, concerning the schism*. When at once and manifestly the validity of an election is established through common acceptance, however much some may afterwards protest, not even all the Electors together can revoke it, once made and accepted. And so it happened with the Election of Urban VI, whose juridical election neither the number of those Cardinals — namely twelve, Frenchmen, short of the lawful number — nor their too-tardy protest could invalidate; who accordingly was without any doubt the true Pontiff (whom for that reason St. Catherine of Siena greatly championed), and all his Successors were always held as altogether legitimate by the greater and sounder part of the Church down to the times of Gregory XII, Benedict XIII, and John XXIII, all three of whom called themselves Popes, and each had his own adherents; whence at that time, even among prudent men and men of sound judgment, some doubt arose — chiefly between Gregory XII and John XXIII (for no probable right pleaded for Benedict) — as to which of them was to be preferred to the other; for both had been elected, at different turns, by the greater part of the Cardinals for the sake of removing the schism; whence each seemed able to claim a right to the Papacy.

XLIII. In this case and most sorrowful state of the Church it must be judged that it was not of faith which of them was the true and legitimate Pope. So, after others, expressly Arriaga (Tom. 5, Disp. 7, sect. 8, num. 54). For in order that the election of a Pope be of faith, and be held as such, it does not suffice that it be proposed and accepted by the Church in any way whatsoever; but it must be proposed and accepted without probable

contradiction — that is, notable contradiction of prudent men, and resting on apparent foundations; otherwise it is lawful for anyone to suspend assent until it be better established who has the true right to the Papacy. But if only a few oppose the election, who may be mere malcontents, they do not break the election, nor take away its certitude. Now in the time of Gregory XII and John XXIII such probable contradiction existed, since on either side stood many prudent men resting on apparent foundations, and Christendom was torn asunder, as the Historians testify. Therefore it was then of faith for neither, nor was it held as such. It is confirmed from the common opinion of all the Doctors: a doubtful Pope, in the face of the Church, is really not a true Pope, inasmuch as the Church is not bound to obey him, but may by right proceed to a new election. Since therefore the aforesaid Pontiffs were doubtful Pontiffs, and the Church for that reason proceeded to a new election in the Council of Constance, as is evident to all, it could not be of faith that either Gregory or John was then the true Pope. From this, however, it is not inferred that it was then just as if all had adhered to a non-true Pope. For although many adhered to him who really was not Pope, nevertheless the whole Church was not deceived, but only a part; those also who are invincibly deceived, the Schism being afterwards removed and they being united to the true Pontiff, seek anew and will receive the confirmation of those graces which they had received from the apparent one; and thus the danger of irreparable harm and of false dogmas by this very fact ceases. Hence Martin V, at length legitimately and without contradiction elected in the Council of Constance, the schism being entirely laid to rest, of the things done under the Schism revalidated some and invalidated others, as seemed expedient for the good of the Church and for removing from her every ground of doubting.

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